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Executive Order.

WHEREAS, by an Executive Order of January 17, 1873, it was declared that "persons holding any federal civil office by appointment under the Constitution and the laws of the United States will be expected, while holding such office, not to accept or hold any office under any State or Territorial Government, or under the charter or ordinances of any municipal corporation";

AND WHEREAS, it is expedient that the Federal and State Governments should cooperate for the better enforcement of the laws with regard to the forests and the protection of fish and game;

AND WHEREAS, the Congress, in Acts passed June 30, 1906 (34 Stats. 669, 683) and March 4, 1907 (34 Stats. 1256, 1269), has directed that "hereafter officials of the Forest Service designated by the Secretary of Agriculture shall, in all ways that are practicable, aid in the enforcement of the laws of the States or Territories with regard to stock, for the prevention and extinguishment of forest fires, and for the protection of fish and game";

AND WHEREAS, it seems that such cooperation can, in many instances, be best effected by allowing officers and employees of the Forest Service and Biological Survey of the United States Department of Agriculture to accept certain State and Territorial appointments and certain State and Territorial officials to receive appointments in the said Forest Service and Biological Survey.

NOW, THEREFORE, in consideration of the premises, I deem it proper to give public notice that hereafter State and Territorial foresters, and their technically trained assistants, unless prohibited by the laws of the State or Territory, may be allowed to serve as Collaborators in the Federal Forest Service, and that officers and employees of the said Forest Service and Biological Survey may, with the approval of the Secretary of Agriculture, accept appointments to positions on State and Territorial forest commissions and boards and to such other State and Territorial positions as will empower them to enforce or assist in enforcing the local forest, stock and game laws, provided the services to be rendered under such appointments do not interfere with the duties of their Federal employment.

THEODORE ROOSEVELT

THE WHITE HOUSE,
June 13, 1907.

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